Justification for Other than Full and Open Competition in Accordance With 41 U.S.C. 3304(a)(1)

Requisition Number: SHOP-PR-26-002435

Title: SUMURI for the Counterterrorism Division
Date: 09/10/2026
Estimated Contract Dollar Value: $266,000.00

1. Identification of the agency and the contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), National Acquisition Program Unit, has prepared this Justification for Other than Full and Open Competition for (15) TALINO Intel Workstations, Sumuri Products on behalf of the CTD.

2. The nature and/or description of the action being approved, i.e. sole source, limited competition, establishment of a new source, etc.

It is the intent of the CTD to acquire highly specialized and customized forensic systems from SUMURI to support its digital forensic examination, evidence processing, investigative, and field examination requirements. These computers are to be used for stand alone digital review/processing stations for obtained digital evidence.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value)

CTD requires high-performance computer systems specifically suited for digital forensic examinations. The systems must support demanding forensic workloads, including evidence acquisition and processing, analysis of large forensic images, mobile-device examination, password recovery, data recovery, and other computationally intensive investigative activities.

The required systems must provide substantially higher performance and expandability than conventional commercial desktop and laptop computers. The systems must also support CTD's existing forensic workflows and provide sufficient processing power, memory, storage, GPU capability, ability to write-block/modify original digital evidence, and removable/expandable storage to efficiently process large volumes of digital evidence.

CTD additionally requires portable systems capable of providing workstation-level performance while allowing investigators and forensic examiners to conduct examinations outside of the laboratory environment.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304 (a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.103-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

5. Demonstrate that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

SUMURI is uniquely qualified to provide equipment to CTD based upon the following:

SUMURI is a known computer manufacturer previously utilized by the FBI, which has provided digital forensic equipment that meets the technical requirements necessary to process, review, and store large amounts of digital evidence.

SUMURI's TALINO product line is specifically designed for digital forensics and related investigative workloads. SUMURI describes its TALINO systems as purpose-built forensic workstations and laptops and states that the systems are designed for digital investigations, forensic imaging, evidence processing, password recovery, malware analysis, and other computationally intensive workloads.

The TALINO systems also incorporate configurations and features specifically suited to forensic examination, including high-performance processors, NVIDIA RTX GPUs, multiple NVMe storage devices, hot-swap drive bays, forensic card readers and other forensic hardware integration options, depending on the selected configuration.

Additionally, SUMURI states that all TALINO workstations and laptops are Trade Agreements Act (TAA) compliant, which satisfies the FBI's applicable government procurement requirements.

CTD has determined that these characteristics are essential to meeting its operational requirements. The requirement is therefore not simply for a commercially available computer with equivalent basic specifications. Rather, the OCRCFL requires a system configured and optimized for its digital forensic mission, including the ability to efficiently process forensic evidence and accommodate specialized forensic workflows.

SUMURI is considered the only responsible source capable of providing the required TALINO systems in the configuration necessary to satisfy OCRCFL's requirement.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will not be publicized as required by Subpart 5.1 and, if not, which exception under 5.101 applies.

Although competition is restricted, pricing will be reviewed to be determined fair and reasonable prior to making an award. The equipment requested is comparable in price and capabilities, however alternative sources do not have product ready for 90 days. While SUMURI has authorized resellers it is anticipated that purchasing directly from SUMURI offers the lowest price technically acceptable to the government.

An intent of sole source will be posted on Sam.gov once this brand name justification is approved.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The anticipated total dollar value of the Sumuri product is $266,000.00.

The contracting officer will determine, after considering the level of effort and the mix of skills available for the tasks needed, that the proposed order or BPA represents a reasonable total price and will be the best value for the FBI.

8. A description of the market research conducted and the results.

Requester conducted market research to determine whether other sources could satisfy the requirement. The research included a review of commercially available forensic workstations and laptops and consideration of alternative systems and manufacturers.

The requester determined that commercially available general-purpose workstations and laptops do not provide the required combination of forensic-specific configuration, performance, expandability, storage architecture, forensic hardware integration, and portability required for the intended mission.

The requester will maintain documentation of its market research including vendor information, product comparisons, correspondence, quotations, and other supporting materials, as part of the acquisition file.

9. Any other facts supporting the use of other than full and open competition.

Not Applicable

10. A listing of any sources, if any, that expressed a written interest in the acquisition.

This requirement will be posted on sam.gov.

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

The Government will continue to research the market to obtain as many available sources as required in accordance with the FAR to ensure that there are other vendors out there that can satisfy this requirement. In addition, the customer will do due diligence in ensuring that barriers to competition are avoided to ensure we obtain the best value for the government.

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION FOR SUMURI PRODUCTS

REQUIRED COORDINATION AND APPROVAL SIGNATURES

All parties listed as Approvers in the table below certify that the justification provided is accurate and complete to the best of their knowledge and belief.

ROLE	REQUIRED?	APPROVED?	APPROVER	DATE
COR	YES	YES	Kiley, Kristina (CTD) (FBI)	9/10/2026 12:21 PM
CONTRACTING OFFICER	YES	YES	Tiggle, Ricardo M. (FFD) (FBI)	9/10/2026 11:08 AM
TEAM LEAD	YES	YES	Yates, David Paul (FFD) (FBI)	9/10/2026 12:28 PM
UNIT CHIEF	NO	N/A		
OFFICE OF THE GENERAL COUNSEL	NO	N/A		
DEPUTY COMPETITION ADVOCATE	NO	N/A		
BUREAU PROCUREMENT CHIEF	NO	N/A		
COMPETITION ADVOCATE	NO	N/A		
HEAD OF CONTRACTING AGENCY	NO	N/A		
DOJ SENIOR PROCUREMENT EXECUTIVE	NO	N/A		